DEANNE CASPERSON (ISB No. 6698)
dcasperson@workandwage.com
RYAN S. DUSTIN (ISB No. 8683)
rdustin@workandwage.com
CASPERSON & DUSTIN PLLC
356 W. Sunnyside Road, Suite B
Idaho Falls, Idaho 83402
Telephone: (208) 524-0566
Fax: (208) 745-2523
Local Counsel for Plaintiff

EMANUEL KATAEV, ESQ. (N.Y. Reg. No. 5154588)
emanuel@sagelegal.nyc
SAGE LEGAL LLC
18211 Jamaica Avenue, Jamaica, New York 11423-2327
Telephone: (718) 412-2421 | Facsimile: (718) 489-4155
Counsel for Plaintiff (pro hac vice application forthcoming)

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF IDAHO

VÍCTOR ALFONSO TARAZONA CASTRO, on behalf of himself and all others similarly situated, Plaintiff, v. J&A OILFIELD SERVICES LLC and JAIME VAZQUEZ, Defendants.	Case No. 1:26-cv-00521-DKG **CLASS AND COLLECTIVE ACTION COMPLAINT** **DEMAND FOR JURY TRIAL**

Plaintiff Víctor Alfonso Tarazona Castro ("Plaintiff"), on behalf of himself and all others similarly situated, by and through his undersigned counsel, upon personal knowledge as to himself and upon information and belief as to all other matters, brings this Class and Collective Action Complaint against Defendants J&A Oilfield Services LLC ("J&A" or the "Corporate Defendant") and Jaime Vazquez ("Vazquez" or the "Individual Defendant") (collectively, "Defendants"), and alleges as follows:

NATURE OF THE ACTION

1. This is a wage-and-hour action arising from Defendants' complete failure to pay Plaintiff for fiber-optic installation work that he performed in Idaho from approximately July 24, 2024 through August 13, 2024.

2. Defendants agreed to compensate Plaintiff at a piece rate of $5.00 for each foot of fiber-optic cable that he installed, controlled the work and the manner in which it was performed, accepted the benefit of Plaintiff's labor, and nevertheless paid him nothing.

3. Plaintiff typically worked approximately fifty (50) hours per week.

4. The piece-rate arrangement did not exempt Plaintiff from federal or Idaho minimum-wage requirements or from the Fair Labor Standards Act's overtime requirement.

5. Defendants failed to pay Plaintiff any straight-time compensation, any statutory minimum wages, or any overtime premium.

6. Plaintiff's records and calculations reflect at least approximately $14,950.00 in agreed compensation due, subject to Defendants' records and discovery.

7. Plaintiff seeks unpaid minimum wages and overtime compensation under the Fair Labor Standards Act, 29 U.S.C. § 201 et seq. ("FLSA"); unpaid minimum wages under the Idaho Minimum Wage Law, Idaho Code § 44-1501 et seq. ("IMWL"); unpaid agreed and final wages under the Idaho Wage Claim Act, Idaho Code § 45-601 et seq. ("IWCA"); and, in the alternative, relief for breach of contract, unjust enrichment, and/or quantum meruit.

8. Plaintiff brings his FLSA claims for himself and a narrowly defined collective of similarly situated Idaho installation workers under 29 U.S.C. § 216(b). Plaintiff also brings his IMWL and IWCA claims for himself and the proposed Idaho classes defined below under Rule 23 of the Federal Rules of Civil Procedure (hereinafter referred to as "Rules" or "Rule").

JURISDICTION AND VENUE

9. This Court has subject-matter jurisdiction over Plaintiff's FLSA claims under 28 U.S.C. § 1331 and 29 U.S.C. § 216(b).

10. This Court has supplemental jurisdiction over Plaintiff's Idaho statutory and common-law claims under 28 U.S.C. § 1367 because those claims arise from the same employment relationship, work, compensation practices, and nonpayment as the FLSA claims and form part of the same case or controversy.

11. This Court has personal jurisdiction over Defendants because Defendants purposefully employed Plaintiff to perform work in Idaho, directed and benefited from that Idaho work, and caused the wage injuries alleged in this action in Idaho.

12. Venue is proper in the District of Idaho under 28 U.S.C. § 1391(b)(2) because a substantial part of the events and omissions giving rise to Plaintiff's claims occurred in this District, including Plaintiff's performance of unpaid work and Defendants' failure to pay for that work.

PARTIES

13. Plaintiff is an adult individual who, at all relevant times, resided in Salt Lake County, Utah.

14. Plaintiff worked for Defendants in Idaho from approximately July 24, 2024 through August 13, 2024 as a fiber-optic cable installer.

15. J&A is a limited liability company organized under the laws of Wyoming with a principal business address at 2701 Cloud Court, Rock Springs, Wyoming 82901.

16. J&A employed installation and field workers, including Plaintiff, on projects outside Wyoming, including fiber-optic installation projects in Idaho.

17. Upon information and belief, Vazquez is an adult individual residing in Wyoming and, at all relevant times, was an owner, member, manager, or principal of J&A.

18. Vazquez exercised operational control over J&A and over Plaintiff's employment.

19. Among other things, Vazquez had authority over hiring and firing, work assignments, schedules, supervision, compensation rates, payroll practices, recordkeeping, and payment of wages.

20. Vazquez participated in or approved the agreement to pay Plaintiff $5.00 per installed foot, knew the amount and nature of Plaintiff's work, controlled whether Plaintiff would be paid, and communicated or caused communications concerning payment of Plaintiff's wages.

21. J&A and Vazquez each suffered or permitted Plaintiff to work and acted directly or indirectly in the interest of an employer in relation to Plaintiff.

22. Under the economic realities of the relationship, J&A and Vazquez were Plaintiff's joint employers under 29 U.S.C. § 203(d) and are jointly and severally liable for the FLSA violations alleged in this Complaint.

FACTUAL ALLEGATIONS

23. Defendants hired Plaintiff on or about July 24, 2024 to install fiber-optic cable for Defendants and their customers on projects in Idaho.

24. Plaintiff performed installation and related manual labor in and around Caldwell and Nampa, Idaho, and at other Idaho work locations assigned by Defendants.

25. Plaintiff's work was integral to Defendants' installation operations and was performed for Defendants' benefit and for the benefit of their customers or upstream contractors.

26. Defendants controlled Plaintiff's assignments, job locations, expected schedule, performance requirements, and compensation arrangement. Plaintiff was not operating an independent installation business, did not negotiate separate project prices with Defendants' customers, and did not control Defendants' opportunity for profit or loss.

27. Defendants agreed to pay Plaintiff $5.00 for each foot of fiber-optic cable that he installed.

28. Compensation measured by task or piece is a wage under Idaho Code § 45-601(7), and payment on a piece-rate basis does not eliminate federal or state minimum-wage obligations or the FLSA overtime premium.

29. Plaintiff performed the assigned installation work, Defendants accepted the work, and Defendants or their customers received the benefit of it.

30. Plaintiff typically worked Monday through Friday and approximately fifty hours per week, including hours in excess of forty in at least one workweek.

31. Defendants knew or should have known the number of days and hours Plaintiff worked and the quantity of fiber-optic cable he installed because Defendants assigned and supervised the work and required or maintained production and project information.

32. Defendants were required to make, keep, and preserve accurate records of Plaintiff's hours, earnings, piece-rate production, and payments under the FLSA and applicable regulations.

33. Defendants failed to provide Plaintiff with complete and accurate records sufficient to determine all wages and overtime premiums due.

34. Defendants did not pay Plaintiff any wages during his employment. Because Plaintiff received no wages, his effective hourly rate was zero dollars for the workweeks at issue, below the minimum wage required by the FLSA and the IMWL.

35. Defendants also did not pay Plaintiff the additional overtime premium required for hours worked over forty in a workweek.

36. Plaintiff's contemporaneous information and calculations show that Defendants owe at least approximately $14,950.00 in agreed piece-rate compensation, exclusive of statutory damages, overtime premiums, interest, attorneys' fees, and costs, subject to Defendants' records and proof at trial.

37. When payment was not forthcoming, Plaintiff repeatedly asked Defendants for the wages he had earned.

38. On or about August 13, 2024, Plaintiff informed Defendants that he could not continue working without being paid.

39. Defendants promised Plaintiff that payment would be made within approximately one week, but Defendants did not make that payment.

40. Defendants later asserted that an upstream contractor referred to as C2C was responsible for payment.

41. Upon information and belief, however, C2C paid or made funds available to Defendants for Plaintiff's work, and Defendants remained the parties that hired Plaintiff, promised his compensation, controlled the work, and were responsible for paying him.

42. Regardless of any arrangement between Defendants and C2C or another contractor, Plaintiff was not a party to an agreement relieving Defendants of their federal or Idaho wage obligations.

43. Upon Plaintiff's separation from employment, all earned wages were due no later than the next regularly scheduled payday or within ten days, as required by Idaho Code § 45-606.

44. Defendants did not pay those wages within either period.

45. Defendants' failure to pay any wages, their promise to pay after Plaintiff complained, their continued nonpayment after written demands, and their failure to maintain or provide accurate wage records demonstrate that the FLSA violations were knowing or reckless and therefore willful.

46. As a direct result of Defendants' conduct, Plaintiff lost minimum wages, overtime premiums, promised piece-rate wages, and the use of those funds, and incurred litigation costs and attorneys' fees.

FLSA COLLECTIVE ACTION ALLEGATIONS

47. Plaintiff brings the FLSA claims in Counts I and II as a collective action under 29 U.S.C. § 216(b) for himself and the following persons (the "FLSA Collective"): all current and former nonexempt installation or field workers whom Defendants employed to perform fiber-optic or communications installation work in Idaho during the three years preceding the filing of this action, who were compensated or promised compensation on a piece-rate or other nonhourly basis, and who were not paid all required minimum wages or overtime premiums.

48. Plaintiff and the FLSA Collective members were similarly situated because they performed similar nonexempt installation or field work, were subject to common control by Defendants, and were paid or promised compensation under common piece-rate or nonhourly practices.

49. Upon information and belief, Defendants staffed installation projects with multiple workers and crews, and Plaintiff was not the only worker whose wages or overtime premiums Defendants failed to pay.

50. The FLSA Collective members were subject to one or more common policies or practices, including failing to convert piece-rate compensation to a regular hourly rate, failing to pay an overtime premium for hours over forty, failing to ensure payment of minimum wages in each workweek, and failing to pay wages timely.

51. The FLSA Collective members' claims share common issues of law and fact, including whether Defendants were joint employers, whether enterprise or individual coverage existed, whether the workers were employees rather than independent contractors, whether the work was nonexempt, how the regular rate should be calculated, whether Defendants failed to pay minimum wages and overtime premiums, and whether the violations were willful.

52. Defendants' time, production, project, crew, payroll, and payment records will identify the FLSA Collective members and permit common proof of Defendants' compensation practices and violations.

53. The names and contact information of the FLSA Collective members are known to Defendants but are not presently available to Plaintiff.

54. Court-authorized notice is appropriate so that similarly situated workers may learn of this action and make an informed decision whether to file written consents to join.

RULE 23 CLASS ACTION ALLEGATIONS

55. Plaintiff brings the Idaho statutory claims in Counts III and IV under Rule 23 on behalf of himself and the following proposed classes:

56. Idaho Wage Class: all persons whom Defendants employed to perform installation or field work in Idaho during the two years preceding the filing of this action and whom Defendants paid no wages for one or more pay periods or projects, including compensation measured on a time, task, piece, or commission basis.

57. Idaho Minimum-Wage Subclass: all members of the Idaho Wage Class whose wages in one or more workweeks, when divided by hours worked, were less than the applicable Idaho minimum wage.

58. Excluded from the proposed classes are Defendants; Defendants' owners, members, officers, and managers with responsibility for the challenged policies; the assigned judge and court staff; and any person who timely opts out of a certified class.

59. The exact number and identities of the proposed class members are presently unknown because the relevant payroll, time, production, project, and personnel records are controlled by Defendants.

60. Upon information and belief, the proposed classes are sufficiently numerous that joinder is impracticable.

CAUSES OF ACTION

COUNT I

FAILURE TO PAY MINIMUM WAGES UNDER THE FLSA

61. Plaintiff repeats and realleges each preceding allegation as though fully set forth herein.

62. At all relevant times, Defendants were employers, Plaintiff and the FLSA Collective members were employees, and the employment was covered by the FLSA.

63. Section 6 of the FLSA, 29 U.S.C. § 206, required Defendants to pay Plaintiff and the FLSA Collective members at least the federal minimum wage for each hour worked.

64. Defendants paid Plaintiff no wages for the workweeks at issue, resulting in an effective hourly rate of zero dollars and a minimum-wage shortfall for every compensable hour.

65. Defendants' violations were willful within the meaning of 29 U.S.C. § 255(a) because Defendants knew or showed reckless disregard for whether their failure to pay wages violated the FLSA.

66. Under 29 U.S.C. § 216(b), Plaintiff and the FLSA Collective members are entitled to recover unpaid minimum wages, an equal amount as liquidated damages, reasonable attorneys' fees, and costs, together with all other relief allowed by law.

COUNT II

FAILURE TO PAY OVERTIME COMPENSATION UNDER THE FLSA

67. Plaintiff repeats and realleges each preceding allegation as though fully set forth herein.

68. Section 7 of the FLSA, 29 U.S.C. § 207(a), required Defendants to pay Plaintiff and the FLSA Collective members overtime compensation at one and one-half times the regular rate for hours worked over forty in a workweek.

69. Plaintiff typically worked approximately fifty hours per week and worked more than forty hours in one or more workweeks.

COUNT III

FAILURE TO PAY IDAHO MINIMUM WAGES

70. Plaintiff repeats and realleges each preceding allegation as though fully set forth herein.

71. At all relevant times, Defendants were employers and Plaintiff and the Idaho Minimum-Wage Subclass members were employees within the meaning of the IMWL.

72. Idaho Code § 44-1502 required Defendants to pay at least the applicable Idaho minimum wage for every hour worked.

73. Idaho Code § 45-606(2) separately required a nonhourly employee, upon separation, to receive at least the applicable minimum wage for all hours worked in the immediately preceding pay period within the statutory payment period.

74. Defendants paid Plaintiff no wages and therefore paid him less than the Idaho minimum wage for every hour worked.

PRAYER FOR RELIEF

75. WHEREFORE, Plaintiff respectfully requests that the Court enter judgment against Defendants, jointly and severally, and grant the following relief:

(a) Certify the FLSA collective under 29 U.S.C. § 216(b) and authorize notice to similarly situated installation workers;

(b) Certify the proposed Idaho classes under Rule 23 and appoint Plaintiff and his counsel to represent them;

(c) Award Plaintiff and the FLSA Collective members unpaid minimum wages and overtime compensation under the FLSA;

(d) Award liquidated damages in an equal amount under 29 U.S.C. § 216(b);

(e) Award unpaid minimum wages under the IMWL and unpaid agreed and final wages under the IWCA, without duplicative recovery of interest and liquidated damages for the same injury;

(f) Award Plaintiff and the represented workers their reasonable attorneys' fees, litigation expenses, and costs under 29 U.S.C. § 216(b), Idaho Code § 45-615, and all other applicable law; and

(g) Grant such other and further legal or equitable relief as the Court deems just, equitable, and proper.

DEMAND FOR JURY TRIAL

76. Pursuant to Rule 38 and District of Idaho Local Civil Rule 38.1, Plaintiff demands a trial by jury on all issues so triable.

DATED this 13th day of August 2026.

Respectfully submitted,

CASPERSON ULRICH DUSTIN PLLC

/s/ DeAnne Casperson
Attorneys for Plaintiff